

1 ENGROSSED SENATE AMENDMENT
TO

2 ENGROSSED HOUSE
3 BILL NO. 4326

By: Moore, Archer and Deck of
the House

4 and

5 Seifried and Bullard of the
6 Senate

7
8 An Act relating to the Oklahoma Higher Learning
9 Access Program; amending 70 O.S. 2021, Section 2603,
as last amended by Section 1, Chapter 485, O.S.L.
10 2025 (70 O.S. Supp. 2025, Section 2603), which
relates to eligibility requirements; adding
11 technology center school education to eligibility;
updating references; *** requiring Oklahoma State
12 Regents for Higher Education verify standard or
alternative certificate is in a classroom subject;
13 expanding definition of certified teacher; clarifying
computation of employment for purposes of
14 eligibility; *** requiring certain calculated amounts
be reported to certain Boards; clarifying transfer
15 determination; providing an effective date; and
providing a conditional effective date.

16

17 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
18 entire bill and insert

19 "An Act relating to the Oklahoma Higher Learning
20 Access Program; amending 70 O.S. 2021, Section 2603,
as last amended by Section 1, Chapter 485, O.S.L.
21 2025 (70 O.S. Supp. 2025, Section 2603), which
relates to eligibility requirements; conforming
22 language; clarifying eligibility for students adopted
at certain age; expanding eligibility for students in
23 the court-ordered custody of certain child-placing
agency or a federally recognized Indian tribe;
24 modifying defined term; clarifying certain
definition; amending 70 O.S. 2021, Section 2605, as

1 last amended by Section 2, Chapter 485, O.S.L. 2025
2 (70 O.S. Supp. 2025, Section 2605), which relates to
3 student agreements; extending age by which a student
4 may qualify; conforming language; updating statutory
5 references; removing income limitation for students
6 placed in certain custody during certain grades;
7 directing the Oklahoma State Regents for Higher
8 Education to verify certain certification of certain
9 parents; modifying defined term; modifying
10 definition; clarifying eligibility requirements for
11 children of certain teachers; directing the State
12 Regents to promulgate certain rules; providing an
13 effective date; and declaring an emergency.

14
15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 70 O.S. 2021, Section 2603, as
17 last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
18 2025, Section 2603), is amended to read as follows:

19 Section 2603. A. Except as otherwise provided for in
20 subsection B of this section and elsewhere in this section, to be
21 eligible to participate in the Oklahoma Higher Learning Access
22 Program and to qualify for an award which includes payment of an
23 amount equivalent to resident tuition or other tuition pursuant to
24 Section 2604 of this title for the first semester or other academic
unit of postsecondary enrollment, a student shall:

1. Be a resident of this state or be enrolled in a school
district located in this state that serves students who reside in
both this state and an adjacent state pursuant to a contract as
authorized in Section 5-117.1 of this title;

1 2. Be a United States citizen or lawfully present in the United
2 States. A student who is not a United States citizen or lawfully
3 present in the United States shall not be eligible to participate in
4 the Oklahoma Higher Learning Access Program and to qualify for an
5 award notwithstanding the provisions of Section 3242 of this title.
6 The provisions of this paragraph shall not apply to any student who
7 was enrolled in the Oklahoma Higher Learning Access Program prior to
8 the end of the 2006-2007 school year;

9 3. Have a record of satisfactory compliance with agreements
10 executed pursuant to Section 2605 of this title;

11 4. a. Have graduated within the previous three (3) years
12 from a high school accredited by the State Board of
13 Education or the Oklahoma School of Science and
14 Mathematics with a minimum 2.5 cumulative grade point
15 average on a 4.0 scale for all work attempted in
16 grades nine through twelve,

17 b. Have graduated within the previous three (3) years
18 from a high school not accredited by the State Board
19 of Education with a minimum 2.5 cumulative grade point
20 average on a 4.0 scale for all work attempted in
21 grades nine through twelve and have achieved a

22 composite score of 22 or higher on the ACT test, or

23 c. Have satisfactorily completed within the previous
24 three (3) years an educational program that was

1 provided through a means other than a public or
2 private school and have achieved a composite score of
3 22 or higher on the ACT test;

4 5. Have completed the curricular requirements for admission to
5 an institution within The Oklahoma State System of Higher Education
6 or have completed the core curriculum and be seeking admission to a
7 technology center school governed by the State Board of Career and
8 Technology Education. Students shall also have attained a 2.5 grade
9 point average in the ~~core~~ Oklahoma's Promise required curriculum
10 courses. Students who attended a high school which did not offer
11 all the ~~core~~ Oklahoma's Promise required curriculum courses or
12 students who were educated by other means and were not offered all
13 the ~~core~~ Oklahoma's Promise required curriculum courses shall be
14 allowed to satisfy this curriculum requirement by participating in a
15 program approved by the Oklahoma State Regents for Higher Education
16 for remediation of high school curricular deficiencies;

17 6. Have satisfied admission standards as determined by the
18 Oklahoma State Regents for Higher Education for first-time-entering
19 students for the appropriate type of institution, or, if attending a
20 private institution, have satisfied admission standards as
21 determined by the private institution. No student participating in
22 the Oklahoma Higher Learning Access Program shall be admitted into
23 an institution of higher education by special admission standards;

1 7. Have secured admission to, and enrolled in, an institution
2 which is a member of The Oklahoma State System of Higher Education,
3 a postsecondary vocational-technical program offered by a technology
4 center school that meets the requirements to be eligible for federal
5 student financial aid, or a private institution of higher learning
6 located within this state and accredited pursuant to Section 4103 of
7 this title; and

8 8. a. Have established financial need according to the
9 provisions of subsection D of Section 2605 of this
10 title and standards and provisions promulgated by the
11 Oklahoma State Regents for Higher Education,

12 b. If the student was adopted between birth and twelve
13 (12) years of age while in the permanent custody of
14 the Oklahoma Department of Human Services, in the
15 court-ordered custody of a ~~licensed~~ private nonprofit
16 child-placing agency licensed by the Oklahoma
17 Department of Human Services, or federally recognized
18 Indian tribe, as defined by the federal Indian Child
19 Welfare Act of 1978, have established financial need
20 according to the provisions of paragraph 1 of
21 subsection E of Section 2605 of this title and
22 standards and provisions promulgated by the Oklahoma
23 State Regents for Higher Education,

- 1 c. If the student was adopted ~~between~~ after reaching
2 thirteen (13) years of age and ~~seventeen (17)~~ prior to
3 reaching eighteen (18) years of age while in the
4 permanent custody of the Oklahoma Department of Human
5 Services, in the court-ordered custody of a ~~licensed~~
6 private nonprofit child-placing agency licensed by the
7 Oklahoma Department of Human Services, or federally
8 recognized Indian tribe, as defined by the federal
9 Indian Child Welfare Act of 1978, have established
10 financial need according to the provisions of
11 paragraph 2 of subsection E of Section 2605 of this
12 title and standards and provisions promulgated by the
13 Oklahoma State Regents for Higher Education,
- 14 d. ~~If the student was placed~~ Was in the custody of the
15 Oklahoma Department of Human Services, in the court-
16 ordered custody of a private nonprofit child-placing
17 agency licensed by the Oklahoma Department of Human
18 Services, or federally recognized Indian tribe, as
19 defined by the federal Indian Child Welfare Act of
20 1978, at any time during the eighth, ninth, tenth, or
21 eleventh grade and enrolls in the program no later
22 than his or her official date of high school
23 graduation, ~~have established financial need according~~
24 ~~to the provisions of paragraph 3 of subsection E of~~

1 ~~Section 2605 of this title~~ and any additional
2 requirements according to the standards and provisions
3 promulgated by the Oklahoma State Regents for Higher
4 Education, or

5 e. If the student is the child of a certified ~~classroom~~
6 teacher and meets the provisions of paragraph ~~5~~ 4 of
7 subsection E of Section 2605 of this title. For the
8 purposes of this paragraph, "~~certified classroom~~
9 ~~teacher~~" "certified teacher" shall have the same
10 meaning as provided in subparagraph d of paragraph ~~5~~ 4
11 of subsection E of Section 2605 of this title. A
12 certified teacher shall be considered the parent of a
13 student if the certified teacher is the natural or
14 adoptive parent or the permanent legal guardian of the
15 student.

16 B. 1. A student shall be eligible to participate in the
17 Oklahoma Higher Learning Access Program and to qualify for an award
18 which includes payment of an amount equivalent to resident tuition
19 or other tuition pursuant to Section 2604 of this title for the
20 first semester or other academic unit of postsecondary enrollment if
21 the student meets all of the following criteria:

22 a. is a child of any person killed after January 1, 2000,
23 in the line of duty in any branch of the United States
24 Armed Forces or who died after January 1, 2000, as a

1 result of an injury sustained while in the line of
2 duty in any branch of the United States Armed Forces
3 and the person who was killed or died filed an
4 individual or joint Oklahoma income tax return for the
5 tax year prior to the year during which the person was
6 killed or died,

7 b. is a resident of this state or is enrolled in a school
8 district located in this state that serves students
9 who reside in both this state and an adjacent state
10 pursuant to a contract as authorized in Section 5-
11 117.1 of this title,

12 c. enrolls in an institution within The Oklahoma State
13 System of Higher Education prior to reaching the age
14 of twenty-one (21),

15 d. has satisfied admission standards as determined by the
16 Oklahoma State Regents for Higher Education for first-
17 time-entering students for the appropriate type of
18 institution, or, if attending a private institution,
19 has satisfied admission standards as determined by the
20 private institution. No student participating in the
21 Oklahoma Higher Learning Access Program shall be
22 admitted into an institution of higher education by
23 special admission standards,
24

1 e. has secured admission to, and enrolled in, an
2 institution which is a member of The Oklahoma State
3 System of Higher Education, a postsecondary
4 vocational-technical program offered by a technology
5 center school that meets the requirements to be
6 eligible for federal student financial aid, or a
7 private institution of higher learning located within
8 this state and accredited pursuant to Section 4103 of
9 this title, and

10 f. executes an agreement pursuant to subsection C of
11 Section 2605 of this title.

12 2. A student who is eligible to participate in the program
13 pursuant to this subsection shall not be required to meet the
14 eligibility requirements set forth in subsection A of this section.

15 C. To retain eligibility while pursuing the program of higher
16 learning in which enrolled, the student shall:

17 1. Meet the requirements for retention and degree completion as
18 established by the institution in which the student is enrolled;

19 2. Maintain good academic standing and satisfactory academic
20 progress according to standards of the Oklahoma State Regents for
21 Higher Education;

22 3. Maintain satisfactory academic progress as required for
23 eligibility for federal Title IV student financial aid programs.
24

1 The provisions of this paragraph shall become effective for the
2 2012-2013 school year;

3 4. Comply with the standards related to maintenance of
4 eligibility as promulgated by the Oklahoma State Regents for Higher
5 Education; and

6 5. Refrain from conduct that leads to expulsion or suspension
7 of more than one semester from an institution of higher education.
8 A student who violates the provisions of this paragraph shall
9 permanently lose eligibility for program benefits. The provisions
10 of this paragraph shall become effective January 1, 2008.

11 D. The Oklahoma State Regents for Higher Education and the
12 State Board of Career and Technology Education shall promulgate
13 rules relating to maintenance of eligibility under the Oklahoma
14 Higher Learning Access Act by a student.

15 E. It is the intent of the Legislature that students in the
16 ninth grade for the 1992-93 school year who are determined to be
17 eligible Oklahoma Higher Learning Access students pursuant to the
18 Oklahoma Higher Learning Access Act shall be the first students
19 eligible for benefits from the Oklahoma Higher Learning Access Trust
20 Fund.

21 F. The Oklahoma State Regents for Higher Education are
22 authorized to study, develop, and propose criteria for determining
23 award eligibility based upon the completion of seven semesters of
24 high school coursework by a student.

1 SECTION 2. AMENDATORY 70 O.S. 2021, Section 2605, as
2 last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
3 2025, Section 2605), is amended to read as follows:

4 Section 2605. A. Each school year, every fifth- through
5 eleventh-grade student in the public and private schools of this
6 state and students who are educated by other means and are in the
7 equivalent of the fifth through eleventh grade shall be apprised,
8 together with the parent, custodial parent, or guardian of the
9 student, of the opportunity for access to higher learning under the
10 Oklahoma Higher Learning Access Program. The Oklahoma State Regents
11 for Higher Education and the State Board of Education shall develop,
12 promote, and coordinate a public awareness program to be utilized in
13 making students and parents aware of the Oklahoma Higher Learning
14 Access Program.

15 B. On a form provided by the Oklahoma State Regents for Higher
16 Education, every public school district shall designate at least one
17 Oklahoma Higher Learning Access Program contact person, who shall be
18 a counselor or teacher, at each public school site in this state in
19 which eighth-, ninth-, tenth-, or eleventh-grade classes are taught.
20 When requested by the State Regents, the State Board of Education
21 shall assist the State Regents to ensure the designation of contact
22 persons. Private schools shall also designate at least one school
23 official as a contact person. For students who are educated by
24

1 other means, a parent or guardian or other person approved by the
2 State Regents shall be designated the contact person.

3 C. 1. Students who qualify on the basis of financial need
4 according to subsection D or E of this section or who meet the
5 eligibility qualification set forth in subparagraph d of paragraph 8
6 of subsection A of Section 2603 of this title or in subparagraph a
7 of paragraph 1 of subsection B of Section 2603 of this title no
8 later than December 31 of their twelfth-grade year or prior to
9 reaching the age of ~~seventeen (17)~~ eighteen (18) and who qualify on
10 the basis of the standards and provisions promulgated by the
11 Oklahoma State Regents for Higher Education shall be given the
12 opportunity ~~throughout the eighth-, ninth-, tenth-, and eleventh-~~
13 ~~grade years and no later than December 31 of the twelfth-grade year,~~
14 ~~for students enrolled in a public or private school, or between the~~
15 ~~ages of thirteen (13) and seventeen (17), for students who are~~
16 ~~educated by other means, to enter into participation in the program~~
17 ~~by agreeing to, throughout the remainder of their school years or~~
18 ~~educational~~ to enter into participation in the program:

19 a. for students enrolled in a public or private school,
20 throughout the eighth-, ninth-, tenth-, and eleventh-
21 grade years and prior to:

22 (1) December 31 of the twelfth-grade year, or

23 (2) the official date of high school graduation,

24 whichever occurs first, and

1 b. for students educated by other means after reaching
2 thirteen (13) years of age and prior to:
3 (1) reaching eighteen (18) years of age, or
4 (2) the date of completion of their educational
5 program, whichever occurs first.

6 2. Students who qualify on the basis of financial need
7 according to subsection D or E of this section or who meet the
8 eligibility qualification set forth in subparagraph d of paragraph 8
9 of subsection A of Section 2603 of this title or in subparagraph a
10 of paragraph 1 of subsection B of Section 2603 of this title shall
11 enter into participation in the program by agreeing throughout the
12 remainder of their school years or educational program to:

- 13 a. attend school or an educational program regularly and
- 14 do homework regularly,
- 15 b. refrain from substance abuse,
- 16 c. refrain from commission of crimes or delinquent acts,
- 17 d. have school work and school records reviewed by
- 18 mentors designated pursuant to the program,
- 19 e. provide information requested by the Oklahoma State
- 20 Regents for Higher Education or the State Board of
- 21 Education, and
- 22 f. participate in program activities.

23 ~~2.~~ 3. Students who meet the eligibility qualification set forth
24 in subparagraph a of paragraph 1 of subsection B of Section 2603 of

1 this title after December 31 of their twelfth-grade year or after
2 reaching the age of eighteen (18) shall be given the opportunity
3 prior to reaching the age of twenty-one (21) to enter into
4 participation in the program and shall execute an agreement with
5 provisions as determined by the Oklahoma State Regents for Higher
6 Education.

7 ~~3.~~ 4. The contact person shall maintain the agreements, which
8 shall be executed on forms provided by the Oklahoma State Regents
9 for Higher Education and managed according to regulations
10 promulgated by the Oklahoma State Regents for Higher Education, and
11 the contact person shall monitor compliance of the student with the
12 terms of the agreement. The Oklahoma State Regents for Higher
13 Education are authorized to process student agreements and verify
14 compliance with the agreements. Students failing to comply with the
15 terms of the agreement shall not be eligible for the awards provided
16 in Section 2604 of this title.

17 ~~4.~~ 5. The Oklahoma State Regents for Higher Education may
18 provide an exception to the age limits provided for in paragraphs 1
19 and ~~2~~ 3 of this subsection pursuant to subsection L of this section.

20 ~~5.~~ 6. Notwithstanding the provisions of Sections 5-132 and 5-
21 132.1 of this title, a student who is age twenty-one (21) or older
22 shall not be eligible to enter into participation in the program.

23 D. Except as otherwise provided for in subsection E of this
24 section and except for students who qualify pursuant to subsection B

1 of Section 2603 of this title, a student shall not be found to be in
2 financial need for purposes of the Oklahoma Higher Learning Access
3 Program if:

4 1. Beginning with eighth-, ninth-, or tenth-grade students who
5 are enrolled in a public or private school or students between the
6 ages of thirteen (13) and fifteen (15) who are educated by other
7 means who apply for participation in the program in the 2017-2018
8 school year, the federal adjusted gross income of the student's
9 parent(s) exceeds Fifty-five Thousand Dollars (\$55,000.00) per year;

10 2. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
11 students who are enrolled in a public or private school or students
12 between the ages of thirteen (13) and sixteen (16) who are educated
13 by other means who apply for participation in the program in the
14 2021-2022 school year, the federal adjusted gross income of the
15 student's parent(s) exceeds Sixty Thousand Dollars (\$60,000.00) per
16 year;

17 3. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
18 students who are enrolled in a public or private school or students
19 between the ages of thirteen (13) and sixteen (16) who are educated
20 by other means who apply for participation in the program in the
21 2022-2023 school year:

22 a. the federal adjusted gross income of the student's
23 parent(s), who have two or fewer dependent children,
24 exceeds Sixty Thousand Dollars (\$60,000.00) per year,

1 b. the federal adjusted gross income of the student's
2 parent(s), who have three or four dependent children,
3 exceeds Seventy Thousand Dollars (\$70,000.00) per
4 year, or

5 c. the federal adjusted gross income of the student's
6 parent(s), who have five or more dependent children,
7 exceeds Eighty Thousand Dollars (\$80,000.00) per year;

8 4. Beginning with ~~eighth, ninth, tenth, or eleventh-grade~~
9 ~~students or twelfth-grade students no later than December 31 of~~
10 ~~their twelfth-grade year who are enrolled in a public or private~~
11 ~~school or students between the ages of thirteen (13) and seventeen~~
12 ~~(17) who are educated by other means~~ who apply for participation in
13 the program in the 2025-2026 school year:

14 a. the federal adjusted gross income of the student's
15 parent(s), who have two or fewer dependent children,
16 exceeds Sixty Thousand Dollars (\$60,000.00) per year,

17 b. the federal adjusted gross income of the student's
18 parent(s), who have three or four dependent children,
19 exceeds Seventy Thousand Dollars (\$70,000.00) per
20 year, or

21 c. the federal adjusted gross income of the student's
22 parent(s), who have five or more dependent children,
23 exceeds Eighty Thousand Dollars (\$80,000.00) per year;

1 5. Beginning with the 2018-2019 academic year, prior to
2 receiving any Oklahoma Higher Learning Access Program benefit award
3 for any year during which the student is enrolled in an institution
4 which is a member of The Oklahoma State System of Higher Education,
5 a postsecondary vocational-technical program offered by a technology
6 center school that meets the requirements to be eligible for federal
7 student financial aid, or a private institution of higher learning
8 located within this state and accredited pursuant to Section 4103 of
9 this title, the federal adjusted gross income of the student's
10 parent(s) exceeds One Hundred Thousand Dollars (\$100,000.00) per
11 year.

12 The determination of financial qualification as set forth in
13 this paragraph shall be based on the income of the student, not the
14 income of the parent(s), if a student:

- 15 a. is determined to be independent of the student's
16 parents for federal financial aid purposes at the time
17 of application,
- 18 b. was in the permanent custody of the Oklahoma
19 Department of Human Services at the time the student
20 enrolled in the program, or
- 21 c. was in the court-ordered custody of a federally
22 recognized Indian tribe, as defined by the federal
23 Indian Child Welfare Act of 1978, at the time the
24 student enrolled in the program.

1 The provisions of this paragraph shall apply to any student who
2 has received an Oklahoma Higher Learning Access Program benefit
3 award after the 2017-2018 school year; and

4 6. The Oklahoma State Regents for Higher Education shall review
5 the determination of financial qualification as set forth in
6 paragraphs 1, 2, 3, and 4 of this subsection if the income from
7 taxable and nontaxable sources of the student's parent(s) includes
8 income received from nontaxable military benefits or income received
9 from the federal Social Security Administration due to the death or
10 disability of the student's parent(s). If the income from taxable
11 and nontaxable sources of the student's parent(s), excluding income
12 received from nontaxable military benefits or income received from
13 the federal Social Security Administration due to the death or
14 disability of the student's parent(s), does not exceed the
15 limitations set forth by paragraphs 1, 2, 3, and 4 of this
16 subsection, the student shall be determined to have met the
17 financial qualification set forth in paragraphs 1, 2, 3, and 4 of
18 this subsection.

19 E. 1. A student who was adopted between birth and twelve (12)
20 years of age while in the permanent custody of the Oklahoma
21 Department of Human Services, in the court-ordered custody of a
22 ~~licensed~~ private nonprofit child-placing agency licensed by the
23 Oklahoma Department of Human Services, or federally recognized
24 Indian tribe, as defined by the federal Indian Child Welfare Act of

1 1978, shall not be found to be in financial need for purposes of the
2 Oklahoma Higher Learning Access Program if at the time the student
3 begins postsecondary education and prior to receiving any Oklahoma
4 Higher Learning Access Program benefit award, the federal adjusted
5 gross income of the student's parent(s) exceeds One Hundred Fifty
6 Thousand Dollars (\$150,000.00) per year. The provisions of this
7 paragraph shall not apply to any student who has received an
8 Oklahoma Higher Learning Access Program benefit award prior to the
9 2012-2013 school year.

10 2. A student who was adopted ~~between~~ after reaching thirteen
11 (13) years of age and ~~seventeen (17)~~ prior to reaching eighteen (18)
12 years of age while in the permanent custody of the Oklahoma
13 Department of Human Services, in the court-ordered custody of a
14 ~~licensed~~ private nonprofit child-placing agency licensed by the
15 Oklahoma Department of Human Services, or federally recognized
16 Indian tribe, as defined by the federal Indian Child Welfare Act of
17 1978, shall not be found to be in financial need for purposes of the
18 Oklahoma Higher Learning Access Program if at the time the student
19 begins postsecondary education and prior to receiving any Oklahoma
20 Higher Learning Access Program benefit award, the federal adjusted
21 gross income of the student's parent(s) exceeds Two Hundred Thousand
22 Dollars (\$200,000.00) per year. The provisions of this paragraph
23 shall not apply to any student who has received an Oklahoma Higher
24

1 Learning Access Program benefit award prior to the 2012-2013 school
2 year.

3 3. ~~A student who was placed in the custody of the Department of~~
4 ~~Human Services at any time during the eighth, ninth, tenth, or~~
5 ~~eleventh grade and enrolls in the program no later than his or her~~
6 ~~official date of high school graduation shall not be found to be in~~
7 ~~financial need for purposes of the Oklahoma Higher Learning Access~~
8 ~~Program if the federal adjusted gross income of the student exceeds~~
9 ~~Sixty Thousand Dollars (\$60,000.00) per year.~~

10 4. Except for students who qualify pursuant to subparagraph d
11 of paragraph 8 of subsection A and subsection B of Section 2603 of
12 this title, the determination of financial qualification as set
13 forth in this subsection shall be based on the income of the
14 student, not the income of the parent(s), if the student is
15 determined to be independent of the student's parent(s) for federal
16 financial aid purposes at the time of application. A determination
17 of financial qualification shall not be required for the student who
18 meets the criteria set forth in this subsection at the time the
19 student applies for participation in the program. The provisions of
20 this paragraph shall not apply to any student who has received an
21 Oklahoma Higher Learning Access Program benefit award prior to the
22 2008-2009 school year.

23 5.
24

- 1 4. a. A student who is the child of a certified ~~classroom~~
2 teacher at the time the student applies for
3 participation in the Oklahoma Higher Learning Access
4 Program shall not be found to be in financial need for
5 the purposes of the Oklahoma Higher Learning Access
6 Program if, beginning with eighth-, ninth-, tenth-, or
7 eleventh-grade students or twelfth-grade students no
8 later than December 31 of their twelfth-grade year who
9 are enrolled in a public or private school or students
10 ~~between~~ after reaching thirteen (13) years of age and
11 ~~seventeen (17)~~ prior to reaching eighteen (18) years
12 of age who are educated by other means who apply for
13 participation in the program in the 2025-2026 school
14 year, the household income of the student's parent(s)
15 is equal to or greater than seven hundred percent
16 (700%) of the federal poverty level (FPL).
- 17 b. Prior to receiving any Oklahoma Higher Learning Access
18 Program benefit award for any year during which the
19 student is enrolled in an institution that is a member
20 of The Oklahoma State System of Higher Education, a
21 postsecondary vocational-technical program offered by
22 a technology center school that meets the eligibility
23 requirements for federal student financial aid, or a
24 private institution of higher learning located within

1 this state and accredited pursuant to Section 4103 of
2 this title, the household income of the parent(s) of a
3 student who qualifies pursuant to this paragraph shall
4 not be equal to or greater than seven hundred percent
5 (700%) of the federal poverty level (FPL).

6 c. The Oklahoma State Regents for Higher Education shall
7 verify the full-time employment status of the
8 student's parent(s) and the current standard or
9 alternative certification in a classroom subject of
10 the parents prior to a student who qualifies pursuant
11 to this paragraph receiving any Oklahoma Higher
12 Learning Access Program benefit award.

13 d. For the purposes of this paragraph, ~~"certified~~
14 ~~classroom teacher"~~ "certified teacher" means a
15 ~~certified,~~;

16 (1) full-time classroom teacher who has a standard or
17 alternative certificate to teach issued by the
18 State Board of Education, teaches a classroom
19 subject as determined by the State Regents, and
20 who has been employed as a teacher in a public
21 school district classroom in this state for a
22 minimum of ten (10) years prior to his or her
23 child applying for participation in the program.

1 (2) full-time counselor, librarian, school nurse, or
2 athletic trainer who has a standard or
3 alternative certificate to teach issued by the
4 State Board of Education if employed by a public
5 school district or a technology center school
6 district in this state and otherwise fulfills the
7 requirements of this paragraph, and

8 (3) full-time classroom teacher who has a standard or
9 alternative certificate to teach issued by the
10 State Board of Education who is employed to teach
11 kindergarten through twelfth-grade public school
12 students at a technology center school district
13 in this state if the teacher is employed to teach
14 at least one fall and one spring semester class
15 per academic year that provides free public
16 education to at least one kindergarten through
17 twelfth-grade student and if the teacher
18 otherwise fulfills the requirements of this
19 paragraph.

20 e. The certified teacher ~~is~~ shall not be required to have
21 been employed by the same public school district for
22 ten (10) consecutive years and the ten (10) years of
23 employment shall not be required to be consecutive.
24

1 However, the ten (10) years of employment shall have
2 occurred in the last twenty (20) years.

3 f. Certified ~~classroom~~ teacher does not mean a certified
4 teacher who is employed as a school district
5 superintendent, principal, or any other position
6 within the administration of a public school district
7 when his or her child applies for participation in the
8 program or prior to his or her child receiving any
9 Oklahoma Higher Learning Access Program benefit award.

10 g. Employment as a teacher with an emergency or
11 provisional certificate shall not qualify for the
12 employment requirements of this paragraph.

13 F. The financial qualification of a student as set forth in
14 subsections D and E of this section shall be certified by the
15 contact person or by the Oklahoma State Regents for Higher Education
16 on the agreement form provided by the Oklahoma State Regents for
17 Higher Education. The form shall be retained in the permanent
18 record of the student and a copy forwarded to the Oklahoma State
19 Regents for Higher Education.

20 G. Agreements shall be witnessed by the parent, custodial
21 parent, or guardian of the student, who shall further agree to:

22 1. Assist the student in achieving compliance with the
23 agreements;

1 2. Confer, when requested to do so, with the school contact
2 person, other school personnel, and program mentors;

3 3. Provide information requested by the Oklahoma State Regents
4 for Higher Education or the State Board of Education; and

5 4. Assist the student in completing forms and reports required
6 for program participation, making applications to institutions and
7 schools of higher learning, and filing applications for student
8 grants and scholarships.

9 H. The Oklahoma State Regents for Higher Education shall
10 promulgate rules for Oklahoma's Promise related to applications,
11 parentage and guardianship, income documentation requirements, and
12 the determination of student compliance with agreements made
13 pursuant to this section.

14 I. The Oklahoma State Regents for Higher Education shall
15 designate personnel to coordinate tracking of program records for
16 the years when students participating in the program are still in
17 the schools or are being educated by other means, provide staff
18 development for contact persons in the schools, and provide liaison
19 with the State Board of Education and local organizations and
20 individuals participating in the program.

21 J. The school district where an Oklahoma Higher Learning Access
22 Program student is enrolled when the student begins participation in
23 the program and any subsequent school district where the student
24 enrolls shall forward information regarding participation by the

1 student in the program to a school to which the student transfers
2 upon the request of the school for the records of the student.

3 K. Students participating in the Oklahoma Higher Learning
4 Access Program shall provide their Social Security number or their
5 student identification number used by their school to the Oklahoma
6 State Regents for Higher Education. The State Regents shall keep
7 the numbers confidential and use them only for administrative
8 purposes.

9 L. The State Regents may provide an exception to the age limits
10 provided for in paragraphs 1 and ~~2~~ 3 of subsection C of this section
11 to a student due to hardship circumstances and allow an application
12 to the Oklahoma Higher Learning Access Program for twelfth-grade
13 students enrolled in a public or private school and students who are
14 educated by other means and are in the equivalent of twelfth grade.
15 Provided, however, the exception due to hardship circumstances shall
16 not apply to:

17 1. A student enrolled in a public or private school after the
18 student's official date of high school graduation;

19 2. A student educated by other means who is age nineteen (19)
20 or older; or

21 3. Any student who is age twenty-one (21) or older.

22 The Oklahoma State Regents for Higher Education shall promulgate
23 rules to implement the provisions of this subsection.

24 SECTION 3. This act shall become effective July 1, 2026.

SECTION 4. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval."

Passed the Senate the 5th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives

1 ENGROSSED HOUSE
2 BILL NO. 4326

By: Moore, Archer and Deck of
the House

3 and

4 Seifried and Bullard of the
5 Senate

6
7 An Act relating to the Oklahoma Higher Learning Access Program;
8 amending 70 O.S. 2021, Section 2603, as last amended by Section 1,
9 Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2603), which
10 relates to eligibility requirements; adding technology center school
11 education to eligibility; updating references; expanding eligibility
12 for students in the court-ordered custody of a private nonprofit
13 child-placing agency or a federally recognized Indian tribe during
14 certain time; defining who a parent is for a child of a certified
15 teacher; amending 70 O.S. 2021, Section 2605, as last amended by
16 Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section
17 2605), which relates to student agreements; updating references;
18 expanding eligibility for students in the court-ordered custody of a
19 private nonprofit child-placing agency or a federally recognized
20 Indian tribe during certain time; removing income requirement for
21 student in the custody of the Oklahoma Department of Human Services,
22 in the court-ordered custody of a private nonprofit child-placing
23 agency, or a federally recognized Indian tribe during certain time;
24 requiring Oklahoma State Regents for Higher Education verify
standard or alternative certificate is in a classroom subject;
expanding definition of certified teacher; clarifying computation of
employment for purposes of eligibility; requiring standard or
alternative certification be in a classroom subject as determined by
the State Regents; clarifying effect of service as an emergency or
provisionally certified teacher; increasing financial need
qualification threshold amount on or after certain school year;
amending 62 O.S. 2021, Section 34.87, as amended by Section 1,
Chapter 409, O.S.L. 2024 (62 O.S. Supp. 2025, Section 34.87), which
relates to the transfer of funds to the Higher Learning Access Trust
Fund; requiring certain calculations utilizing certain
methodologies; requiring certain calculated amounts be reported to
certain Boards; clarifying transfer determination; providing an
effective date; and providing a conditional effective date.

1
2 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

3 SECTION 5. AMENDATORY 70 O.S. 2021, Section 2603, as
4 last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
5 2025, Section 2603), is amended to read as follows:

6 Section 2603. A. Except as otherwise provided for in
7 subsection B of this section and elsewhere in this section, to be
8 eligible to participate in the Oklahoma Higher Learning Access
9 Program and to qualify for an award which includes payment of an
10 amount equivalent to resident tuition or other tuition pursuant to
11 Section 2604 of this title for the first semester or other academic
12 unit of postsecondary enrollment, a student shall:

13 1. Be a resident of this state or be enrolled in a school
14 district located in this state that serves students who reside in
15 both this state and an adjacent state pursuant to a contract as
16 authorized in Section 5-117.1 of this title;

17 2. Be a United States citizen or lawfully present in the United
18 States. A student who is not a United States citizen or lawfully
19 present in the United States shall not be eligible to participate in
20 the Oklahoma Higher Learning Access Program and to qualify for an
21 award notwithstanding the provisions of Section 3242 of this title.
22 The provisions of this paragraph shall not apply to any student who
23 was enrolled in the Oklahoma Higher Learning Access Program prior to
24 the end of the 2006-2007 school year;

1 3. Have a record of satisfactory compliance with agreements
2 executed pursuant to Section 2605 of this title;

3 4. a. Have graduated within the previous three (3) years
4 from a high school accredited by the State Board of
5 Education or the Oklahoma School of Science and
6 Mathematics with a minimum 2.5 cumulative grade point
7 average on a 4.0 scale for all work attempted in
8 grades nine through twelve,

9 b. Have graduated within the previous three (3) years
10 from a high school not accredited by the State Board
11 of Education with a minimum 2.5 cumulative grade point
12 average on a 4.0 scale for all work attempted in
13 grades nine through twelve and have achieved a
14 composite score of 22 or higher on the ACT test, or

15 c. Have satisfactorily completed within the previous
16 three (3) years an educational program that was
17 provided through a means other than a public or
18 private school and have achieved a composite score of
19 22 or higher on the ACT test;

20 5. Have completed the curricular requirements for admission to
21 an institution within The Oklahoma State System of Higher Education
22 or have completed the core curriculum and be seeking admission to a
23 technology center school governed by the State Board of Career and
24 Technology Education. Students shall also have attained a 2.5 grade

1 point average in the ~~core~~ Oklahoma's Promise required curriculum
2 courses. Students who attended a high school which did not offer
3 all the ~~core~~ Oklahoma's Promise required curriculum courses or
4 students who were educated by other means and were not offered all
5 the ~~core~~ Oklahoma's Promise required curriculum courses shall be
6 allowed to satisfy this curriculum requirement by participating in a
7 program approved by the Oklahoma State Regents for Higher Education
8 for remediation of high school curricular deficiencies;

9 6. Have satisfied admission standards as determined by the
10 Oklahoma State Regents for Higher Education for first-time-entering
11 students for the appropriate type of institution, or, if attending a
12 private institution, have satisfied admission standards as
13 determined by the private institution. No student participating in
14 the Oklahoma Higher Learning Access Program shall be admitted into
15 an institution of higher education by special admission standards;

16 7. Have secured admission to, and enrolled in, an institution
17 which is a member of The Oklahoma State System of Higher Education,
18 a postsecondary vocational-technical program offered by a technology
19 center school that meets the requirements to be eligible for federal
20 student financial aid, or a private institution of higher learning
21 located within this state and accredited pursuant to Section 4103 of
22 this title; and

23 8. a. Have established financial need according to the
24 provisions of subsection D of Section 2605 of this

1 title and standards and provisions promulgated by the
2 Oklahoma State Regents for Higher Education,

3 b. If the student was adopted between birth and twelve
4 (12) years of age while in the permanent custody of
5 the Oklahoma Department of Human Services, in the
6 court-ordered custody of a ~~licensed~~ private nonprofit
7 child-placing agency licensed by the Oklahoma
8 Department of Human Services, or federally recognized
9 Indian tribe, as defined by the federal Indian Child
10 Welfare Act of 1978, have established financial need
11 according to the provisions of paragraph 1 of
12 subsection E of Section 2605 of this title and
13 standards and provisions promulgated by the Oklahoma
14 State Regents for Higher Education,

15 c. If the student was adopted between thirteen (13) and
16 seventeen (17) years of age while in the permanent
17 custody of the Oklahoma Department of Human Services,
18 in the court-ordered custody of a ~~licensed~~ private
19 nonprofit child-placing agency licensed by the
20 Oklahoma Department of Human Services, or federally
21 recognized Indian tribe, as defined by the federal
22 Indian Child Welfare Act of 1978, have established
23 financial need according to the provisions of
24 paragraph 2 of subsection E of Section 2605 of this

- 1 title and standards and provisions promulgated by the
2 Oklahoma State Regents for Higher Education,
- 3 d. ~~If the student was placed~~ Was in the custody of the
4 Oklahoma Department of Human Services, in the court-
5 ordered custody of a private nonprofit child-placing
6 agency licensed by the Oklahoma Department of Human
7 Services, or federally recognized Indian tribe, as
8 defined by the federal Indian Child Welfare Act of
9 1978, at any time during the eighth, ninth, tenth, or
10 eleventh grade and enrolls in the program no later
11 than his or her official date of high school
12 graduation, ~~have established financial need according~~
13 ~~to the provisions of paragraph 3 of subsection E of~~
14 ~~Section 2605 of this title and~~ any additional
15 requirements according to the standards and provisions
16 promulgated by the Oklahoma State Regents for Higher
17 Education, or
- 18 e. If the student is the child of a certified ~~classroom~~
19 teacher and meets the provisions of paragraph 5 of
20 subsection E of Section 2605 of this title. For the
21 purposes of this paragraph, ~~"certified classroom~~
22 ~~teacher"~~ "certified teacher" shall have the same
23 meaning as provided in subparagraph d of paragraph 5
24 of subsection E of Section 2605 of this title. A

certified teacher shall be considered the parent of a student if the certified teacher is the natural or adoptive parent or the permanent legal guardian of the student.

B. 1. A student shall be eligible to participate in the Oklahoma Higher Learning Access Program and to qualify for an award which includes payment of an amount equivalent to resident tuition or other tuition pursuant to Section 2604 of this title for the first semester or other academic unit of postsecondary enrollment if the student meets all of the following criteria:

- a. is a child of any person killed after January 1, 2000, in the line of duty in any branch of the United States Armed Forces or who died after January 1, 2000, as a result of an injury sustained while in the line of duty in any branch of the United States Armed Forces and the person who was killed or died filed an individual or joint Oklahoma income tax return for the tax year prior to the year during which the person was killed or died,
- b. is a resident of this state or is enrolled in a school district located in this state that serves students who reside in both this state and an adjacent state pursuant to a contract as authorized in Section 5-117.1 of this title,

- 1 c. enrolls in an institution within The Oklahoma State
2 System of Higher Education prior to reaching the age
3 of twenty-one (21),
- 4 d. has satisfied admission standards as determined by the
5 Oklahoma State Regents for Higher Education for first-
6 time-entering students for the appropriate type of
7 institution, or, if attending a private institution,
8 has satisfied admission standards as determined by the
9 private institution. No student participating in the
10 Oklahoma Higher Learning Access Program shall be
11 admitted into an institution of higher education by
12 special admission standards,
- 13 e. has secured admission to, and enrolled in, an
14 institution which is a member of The Oklahoma State
15 System of Higher Education, a postsecondary
16 vocational-technical program offered by a technology
17 center school that meets the requirements to be
18 eligible for federal student financial aid, or a
19 private institution of higher learning located within
20 this state and accredited pursuant to Section 4103 of
21 this title, and
- 22 f. executes an agreement pursuant to subsection C of
23 Section 2605 of this title.
- 24

1 2. A student who is eligible to participate in the program
2 pursuant to this subsection shall not be required to meet the
3 eligibility requirements set forth in subsection A of this section.

4 C. To retain eligibility while pursuing the program of higher
5 learning in which enrolled, the student shall:

6 1. Meet the requirements for retention and degree completion as
7 established by the institution in which the student is enrolled;

8 2. Maintain good academic standing and satisfactory academic
9 progress according to standards of the Oklahoma State Regents for
10 Higher Education;

11 3. Maintain satisfactory academic progress as required for
12 eligibility for federal Title IV student financial aid programs.
13 The provisions of this paragraph shall become effective for the
14 2012-2013 school year;

15 4. Comply with the standards related to maintenance of
16 eligibility as promulgated by the Oklahoma State Regents for Higher
17 Education; and

18 5. Refrain from conduct that leads to expulsion or suspension
19 of more than one semester from an institution of higher education.
20 A student who violates the provisions of this paragraph shall
21 permanently lose eligibility for program benefits. The provisions
22 of this paragraph shall become effective January 1, 2008.

23 D. The Oklahoma State Regents for Higher Education and the
24 State Board of Career and Technology Education shall promulgate

1 rules relating to maintenance of eligibility under the Oklahoma
2 Higher Learning Access Act by a student.

3 E. It is the intent of the Legislature that students in the
4 ninth grade for the 1992-93 school year who are determined to be
5 eligible Oklahoma Higher Learning Access students pursuant to the
6 Oklahoma Higher Learning Access Act shall be the first students
7 eligible for benefits from the Oklahoma Higher Learning Access Trust
8 Fund.

9 F. The Oklahoma State Regents for Higher Education are
10 authorized to study, develop, and propose criteria for determining
11 award eligibility based upon the completion of seven semesters of
12 high school coursework by a student.

13 SECTION 6. AMENDATORY 70 O.S. 2021, Section 2605, as
14 last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
15 2025, Section 2605), is amended to read as follows:

16 Section 2605. A. Each school year, every fifth- through
17 eleventh-grade student in the public and private schools of this
18 state and students who are educated by other means and are in the
19 equivalent of the fifth through eleventh grade shall be apprised,
20 together with the parent, custodial parent, or guardian of the
21 student, of the opportunity for access to higher learning under the
22 Oklahoma Higher Learning Access Program. The Oklahoma State Regents
23 for Higher Education and the State Board of Education shall develop,
24 promote, and coordinate a public awareness program to be utilized in

1 making students and parents aware of the Oklahoma Higher Learning
2 Access Program.

3 B. On a form provided by the Oklahoma State Regents for Higher
4 Education, every public school district shall designate at least one
5 Oklahoma Higher Learning Access Program contact person, who shall be
6 a counselor or teacher, at each public school site in this state in
7 which eighth-, ninth-, tenth-, or eleventh-grade classes are taught.
8 When requested by the State Regents, the State Board of Education
9 shall assist the State Regents to ensure the designation of contact
10 persons. Private schools shall also designate at least one school
11 official as a contact person. For students who are educated by
12 other means, a parent or guardian or other person approved by the
13 State Regents shall be designated the contact person.

14 C. 1. Students who qualify on the basis of financial need
15 according to subsection D or E of this section or who meet the
16 eligibility qualification set forth in subparagraph d of paragraph 8
17 of subsection A of Section 2603 of this title or in subparagraph a
18 of paragraph 1 of subsection B of Section 2603 of this title no
19 later than December 31 of their twelfth-grade year or prior to
20 reaching the age of ~~seventeen (17)~~ eighteen (18) and who qualify on
21 the basis of the standards and provisions promulgated by the
22 Oklahoma State Regents for Higher Education shall be given the
23 opportunity throughout the eighth-, ninth-, tenth-, and eleventh-
24 grade years and no later than December 31 of the twelfth-grade year,

1 for students enrolled in a public or private school, or no later
2 than the date of graduation or between the ages of thirteen (13)
3 years of age and ~~seventeen (17)~~ prior to reaching eighteen (18)
4 years of age, for students who are educated by other means, to enter
5 into participation in the program by agreeing to, throughout the
6 remainder of their school years or educational program:

- 7 a. attend school or an educational program regularly and
8 do homework regularly,
- 9 b. refrain from substance abuse,
- 10 c. refrain from commission of crimes or delinquent acts,
- 11 d. have school work and school records reviewed by
12 mentors designated pursuant to the program,
- 13 e. provide information requested by the Oklahoma State
14 Regents for Higher Education or the State Board of
15 Education, and
- 16 f. participate in program activities.

17 2. Students who meet the eligibility qualification set forth in
18 subparagraph a of paragraph 1 of subsection B of Section 2603 of
19 this title after December 31 of their twelfth-grade year or after
20 reaching the age of eighteen (18) shall be given the opportunity
21 prior to reaching the age of twenty-one (21) to enter into
22 participation in the program and shall execute an agreement with
23 provisions as determined by the Oklahoma State Regents for Higher
24 Education.

1 3. The contact person shall maintain the agreements, which
2 shall be executed on forms provided by the Oklahoma State Regents
3 for Higher Education and managed according to regulations
4 promulgated by the Oklahoma State Regents for Higher Education, and
5 the contact person shall monitor compliance of the student with the
6 terms of the agreement. The Oklahoma State Regents for Higher
7 Education are authorized to process student agreements and verify
8 compliance with the agreements. Students failing to comply with the
9 terms of the agreement shall not be eligible for the awards provided
10 in Section 2604 of this title.

11 4. The Oklahoma State Regents for Higher Education may provide
12 an exception to the age limits provided for in paragraphs 1 and 2 of
13 this subsection pursuant to subsection L of this section.

14 5. Notwithstanding the provisions of Sections 5-132 and 5-132.1
15 of this title, a student who is age twenty-one (21) or older shall
16 not be eligible to enter into participation in the program.

17 D. Except as otherwise provided for in subsection E of this
18 section and except for students who qualify pursuant to subsection B
19 of Section 2603 of this title, a student shall not be found to be in
20 financial need for purposes of the Oklahoma Higher Learning Access
21 Program if:

22 1. Beginning with eighth-, ninth-, or tenth-grade students who
23 are enrolled in a public or private school or students between the
24 ages of thirteen (13) and fifteen (15) who are educated by other

1 means who apply for participation in the program in the 2017-2018
2 school year, the federal adjusted gross income of the student's
3 parent(s) exceeds Fifty-five Thousand Dollars (\$55,000.00) per year;

4 2. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
5 students who are enrolled in a public or private school or students
6 between the ages of thirteen (13) and sixteen (16) who are educated
7 by other means who apply for participation in the program in the
8 2021-2022 school year, the federal adjusted gross income of the
9 student's parent(s) exceeds Sixty Thousand Dollars (\$60,000.00) per
10 year;

11 3. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
12 students who are enrolled in a public or private school or students
13 between the ages of thirteen (13) and sixteen (16) who are educated
14 by other means who apply for participation in the program in the
15 2022-2023 school year:

- 16 a. the federal adjusted gross income of the student's
17 parent(s), who have two or fewer dependent children,
18 exceeds Sixty Thousand Dollars (\$60,000.00) per year,
19 b. the federal adjusted gross income of the student's
20 parent(s), who have three or four dependent children,
21 exceeds Seventy Thousand Dollars (\$70,000.00) per
22 year, or
23
24

1 c. the federal adjusted gross income of the student's
2 parent(s), who have five or more dependent children,
3 exceeds Eighty Thousand Dollars (\$80,000.00) per year;

4 4. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
5 students or twelfth-grade students no later than December 31 of
6 their twelfth-grade year who are enrolled in a public or private
7 school or students between ~~the ages of~~ thirteen (13) years of age
8 and ~~seventeen (17)~~ prior to reaching eighteen (18) years of age who
9 are educated by other means who apply for participation in the
10 program in the 2025-2026 school year:

11 a. the federal adjusted gross income of the student's
12 parent(s), who have two or fewer dependent children,
13 exceeds Sixty Thousand Dollars (\$60,000.00) per year,

14 b. the federal adjusted gross income of the student's
15 parent(s), who have three or four dependent children,
16 exceeds Seventy Thousand Dollars (\$70,000.00) per
17 year, or

18 c. the federal adjusted gross income of the student's
19 parent(s), who have five or more dependent children,
20 exceeds Eighty Thousand Dollars (\$80,000.00) per year;

21 5. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
22 students or twelfth-grade students no later than December 31 of
23 their twelfth-grade year who are enrolled in a public or private
24 school or students between thirteen (13) years of age and prior to

1 reaching eighteen (18) years of age who are educated by other means
2 who apply for participation in the program in the 2027-2028 school
3 year, the federal adjusted gross income of the student's parent(s)
4 exceeds One Hundred Thousand Dollars (\$100,000.00) per year;

5 6. Beginning with the 2018-2019 academic year, prior to
6 receiving any Oklahoma Higher Learning Access Program benefit award
7 for any year during which the student is enrolled in an institution
8 which is a member of The Oklahoma State System of Higher Education,
9 a postsecondary vocational-technical program offered by a technology
10 center school that meets the requirements to be eligible for federal
11 student financial aid, or a private institution of higher learning
12 located within this state and accredited pursuant to Section 4103 of
13 this title, the federal adjusted gross income of the student's
14 parent(s) exceeds One Hundred Thousand Dollars (\$100,000.00) per
15 year.

16 The determination of financial qualification as set forth in
17 this paragraph shall be based on the income of the student, not the
18 income of the parent(s), if a student:

- 19 a. is determined to be independent of the student's
20 parents for federal financial aid purposes,
21 b. was in the permanent custody of the Oklahoma
22 Department of Human Services at the time the student
23 enrolled in the program, or
24

1 c. was in the court-ordered custody of a federally
2 recognized Indian tribe, as defined by the federal
3 Indian Child Welfare Act of 1978, at the time the
4 student enrolled in the program.

5 The provisions of this paragraph shall apply to any student who
6 has received an Oklahoma Higher Learning Access Program benefit
7 award after the 2017-2018 school year; and

8 ~~6.~~ 7. The Oklahoma State Regents for Higher Education shall
9 review the determination of financial qualification as set forth in
10 paragraphs 1, 2, 3, and 4 of this subsection if the income from
11 taxable and nontaxable sources of the student's parent(s) includes
12 income received from nontaxable military benefits or income received
13 from the federal Social Security Administration due to the death or
14 disability of the student's parent(s). If the income from taxable
15 and nontaxable sources of the student's parent(s), excluding income
16 received from nontaxable military benefits or income received from
17 the federal Social Security Administration due to the death or
18 disability of the student's parent(s), does not exceed the
19 limitations set forth by paragraphs 1, 2, 3, and 4 of this
20 subsection, the student shall be determined to have met the
21 financial qualification set forth in paragraphs 1, 2, 3, and 4 of
22 this subsection.

23 E. 1. A student who was adopted between birth and twelve (12)
24 years of age while in the permanent custody of the Oklahoma

1 Department of Human Services, in the court-ordered custody of a
2 ~~licensed~~ private nonprofit child-placing agency licensed by the
3 Oklahoma Department of Human Services, or federally recognized
4 Indian tribe, as defined by the federal Indian Child Welfare Act of
5 1978, shall not be found to be in financial need for purposes of the
6 Oklahoma Higher Learning Access Program if at the time the student
7 begins postsecondary education and prior to receiving any Oklahoma
8 Higher Learning Access Program benefit award, the federal adjusted
9 gross income of the student's parent(s) exceeds One Hundred Fifty
10 Thousand Dollars (\$150,000.00) per year. The provisions of this
11 paragraph shall not apply to any student who has received an
12 Oklahoma Higher Learning Access Program benefit award prior to the
13 2012-2013 school year.

14 2. A student who was adopted between thirteen (13) and
15 seventeen (17) years of age while in the permanent custody of the
16 Oklahoma Department of Human Services, in the court-ordered custody
17 of a ~~licensed~~ private nonprofit child-placing agency licensed by the
18 Oklahoma Department of Human Services, or federally recognized
19 Indian tribe, as defined by the federal Indian Child Welfare Act of
20 1978, shall not be found to be in financial need for purposes of the
21 Oklahoma Higher Learning Access Program if at the time the student
22 begins postsecondary education and prior to receiving any Oklahoma
23 Higher Learning Access Program benefit award, the federal adjusted
24 gross income of the student's parent(s) exceeds Two Hundred Thousand

1 Dollars (\$200,000.00) per year. The provisions of this paragraph
2 shall not apply to any student who has received an Oklahoma Higher
3 Learning Access Program benefit award prior to the 2012-2013 school
4 year.

5 3. ~~A student who was placed in the custody of the Department of~~
6 ~~Human Services at any time during the eighth, ninth, tenth, or~~
7 ~~eleventh grade and enrolls in the program no later than his or her~~
8 ~~official date of high school graduation shall not be found to be in~~
9 ~~financial need for purposes of the Oklahoma Higher Learning Access~~
10 ~~Program if the federal adjusted gross income of the student exceeds~~
11 ~~Sixty Thousand Dollars (\$60,000.00) per year.~~ Except for students
12 who qualify pursuant to subparagraph d of paragraph 8 of subsection
13 A and subsection B of Section 2603 of this title, the determination
14 of financial qualification as set forth in this subsection shall be
15 based on the income of the student, not the income of the parent(s),
16 if the student is determined to be independent of the student's
17 parent(s) for federal financial aid purposes. A determination of
18 financial qualification shall not be required for the student who
19 meets the criteria set forth in this subsection at the time the
20 student applies for participation in the program. The provisions of
21 this paragraph shall not apply to any student who has received an
22 Oklahoma Higher Learning Access Program benefit award prior to the
23 2008-2009 school year.

24 ~~5.~~

- 1 4. a. A student who is the child of a certified ~~classroom~~
2 teacher at the time the student applies for
3 participation in the Oklahoma Higher Learning Access
4 Program shall not be found to be in financial need for
5 the purposes of the Oklahoma Higher Learning Access
6 Program if, beginning with eighth-, ninth-, tenth-, or
7 eleventh-grade students or twelfth-grade students no
8 later than December 31 of their twelfth-grade year
9 who are enrolled in a public or private school or
10 students between thirteen (13) years of age and
11 ~~seventeen (17)~~ prior to reaching eighteen (18) years
12 of age who are educated by other means who apply for
13 participation in the program in the 2025-2026 school
14 year, the household income of the student's parent(s)
15 is equal to or greater than seven hundred percent
16 (700%) of the federal poverty level (FPL).
- 17 b. Prior to receiving any Oklahoma Higher Learning Access
18 Program benefit award for any year during which the
19 student is enrolled in an institution that is a member
20 of The Oklahoma State System of Higher Education, a
21 postsecondary vocational-technical program offered by
22 a technology center school that meets the eligibility
23 requirements for federal student financial aid, or a
24 private institution of higher learning located within

1 this state and accredited pursuant to Section 4103 of
2 this title, the household income of the parent(s) of a
3 student who qualifies pursuant to this paragraph shall
4 not be equal to or greater than seven hundred percent
5 (700%) of the federal poverty level (FPL).

6 c. The Oklahoma State Regents for Higher Education shall
7 verify the full-time employment status of the
8 student's parent(s) and the current standard or
9 alternative certification in a classroom subject of
10 the parents prior to a student who qualifies pursuant
11 to this paragraph receiving any Oklahoma Higher
12 Learning Access Program benefit award.

13 d. For the purposes of this paragraph, ~~"certified~~
14 ~~classroom teacher"~~ "certified teacher" means a
15 ~~certified,~~

16 (1) full-time classroom teacher standard or
17 alternatively certified as a teacher by the State
18 Board of Education, teaches a classroom subject
19 as determined by the State Regents, and who has
20 been employed as a teacher in a public school
21 district classroom in this state for a minimum of
22 ten (10) years prior to his or her child applying
23 for participation in the program,

1 (2) full-time counselor, librarian, school nurse, or
2 athletic trainer who is standard or alternatively
3 certified as a teacher by the State Board of
4 Education if employed by a public school district
5 or a technology center school district in this
6 state and otherwise fulfills the requirements of
7 this paragraph, and

8 (3) full-time classroom teacher standard or
9 alternatively certified as a teacher by the State
10 Board of Education who is employed to teach K-12
11 public school students at a technology center
12 school district in this state if the teacher is
13 employed to teach at least one fall and one
14 spring semester class per academic year that
15 provides free public education to at least one K-
16 12 student and if the teacher otherwise fulfills
17 the requirements of this paragraph.

18 e. The certified teacher ~~is~~ shall not be required to have
19 been employed by the same public school district for
20 ten (10) consecutive years and the ten (10) years of
21 employment shall not be required to be consecutive.
22 However, the ten (10) years of employment shall have
23 occurred in the last twenty (20) years.

1 f. Certified ~~classroom~~ teacher does not mean a certified
2 teacher who is employed as a school district
3 superintendent, principal, or any other position
4 within the administration of a public school district
5 when his or her child applies for participation in the
6 program or prior to his or her child receiving any
7 Oklahoma Higher Learning Access Program benefit award.

8 g. Service as an emergency or provisional certified
9 teacher shall not qualify for the employment
10 requirements in this paragraph.

11 F. The financial qualification of a student as set forth in
12 subsections D and E of this section shall be certified by the
13 contact person or by the Oklahoma State Regents for Higher Education
14 on the agreement form provided by the Oklahoma State Regents for
15 Higher Education. The form shall be retained in the permanent
16 record of the student and a copy forwarded to the Oklahoma State
17 Regents for Higher Education.

18 G. Agreements shall be witnessed by the parent, custodial
19 parent, or guardian of the student, who shall further agree to:

20 1. Assist the student in achieving compliance with the
21 agreements;

22 2. Confer, when requested to do so, with the school contact
23 person, other school personnel, and program mentors;

1 3. Provide information requested by the Oklahoma State Regents
2 for Higher Education or the State Board of Education; and

3 4. Assist the student in completing forms and reports required
4 for program participation, making applications to institutions and
5 schools of higher learning, and filing applications for student
6 grants and scholarships.

7 H. The Oklahoma State Regents for Higher Education shall
8 promulgate rules for the determination of student compliance with
9 agreements made pursuant to this section.

10 I. The Oklahoma State Regents for Higher Education shall
11 designate personnel to coordinate tracking of program records for
12 the years when students participating in the program are still in
13 the schools or are being educated by other means, provide staff
14 development for contact persons in the schools, and provide liaison
15 with the State Board of Education and local organizations and
16 individuals participating in the program.

17 J. The school district where an Oklahoma Higher Learning Access
18 Program student is enrolled when the student begins participation in
19 the program and any subsequent school district where the student
20 enrolls shall forward information regarding participation by the
21 student in the program to a school to which the student transfers
22 upon the request of the school for the records of the student.

23 K. Students participating in the Oklahoma Higher Learning
24 Access Program shall provide their Social Security number or their

1 student identification number used by their school to the Oklahoma
2 State Regents for Higher Education. The State Regents shall keep
3 the numbers confidential and use them only for administrative
4 purposes.

5 L. The State Regents may provide an exception to the age limits
6 provided for in paragraphs 1 and 2 of subsection C of this section
7 to a student due to hardship circumstances and allow an application
8 to the Oklahoma Higher Learning Access Program for twelfth-grade
9 students enrolled in a public or private school and students who are
10 educated by other means and are in the equivalent of twelfth grade.
11 Provided, however, the exception due to hardship circumstances shall
12 not apply to:

13 1. A student enrolled in a public or private school after the
14 student's official date of high school graduation;

15 2. A student educated by other means who is age nineteen (19)
16 or older; or

17 3. Any student who is age twenty-one (21) or older.

18 The Oklahoma State Regents for Higher Education shall promulgate
19 rules to implement the provisions of this subsection.

20 SECTION 3. AMENDATORY 62 O.S. 2021, Section 34.87, as
21 amended by Section 1, Chapter 409, O.S.L. 2024 (62 O.S. Supp. 2025,
22 Section 34.87), is amended to read as follows:

23 Section 34.87. In order to ensure that the Oklahoma Higher
24 Learning Access Program will be fully funded and all eligible and

1 qualifying students receive scholarships, the following procedures
2 shall be observed:

3 1. Not later than November 1, 2007, and November 1 of each
4 subsequent year, the Oklahoma State Regents for Higher Education
5 shall estimate for the fiscal year which begins the following July
6 1, the ~~amount~~ amounts of revenue they deem necessary to fund:

7 a. awards allowed pursuant to the Oklahoma Higher
8 Learning Access Act, ~~for the fiscal year which begins~~
9 ~~the following July 1 and provide such estimate to the~~
10 ~~State Board of Equalization.~~ as the act existed at the
11 beginning of the 2026-2027 school year, and

12 b. awards allowed pursuant to any expansion of the
13 Oklahoma Higher Learning Access Act after the
14 beginning of the 2026-2027 school year. The Oklahoma
15 State Regents for Higher Education shall report the
16 estimate calculated pursuant to subparagraph a of this
17 paragraph to the State Board of Equalization, and the
18 estimate calculated pursuant to subparagraph b of this
19 paragraph to the Board of Investors of the Tobacco
20 Settlement Endowment Trust Fund;

21 2. At its meeting in December 2007, and December of each
22 subsequent year, held pursuant to the provisions of paragraph 1 of
23 Section 23 of Article X of the Oklahoma Constitution, the State
24 Board of Equalization shall determine the total amount of revenue

1 necessary to fund awards allowed pursuant to the Oklahoma Higher
2 Learning Access Act for the fiscal year which begins the following
3 July 1 and reflect such amount as it certifies amounts available for
4 appropriation from the General Revenue Fund by the Legislature for
5 such fiscal year and identify the amount to be authorized pursuant
6 to paragraph 3 of this section; and

7 3. Notwithstanding any other provisions of law directing the
8 apportionment of revenues, beginning with the fiscal year ending
9 June 30, 2009, and for each subsequent fiscal year, the Director of
10 the Office of Management and Enterprise Services shall transfer on a
11 periodic basis as needed the amount of revenue calculated pursuant
12 to subparagraph a of paragraph 1 of this section, to be deposited to
13 the Oklahoma Higher Learning Access Trust Fund, provided that the
14 total amount of such transfers in any fiscal year shall not exceed
15 the amount authorized for transfer by applicable budget legislation
16 for such fiscal year.

17 SECTION 4. Section 1 of this act shall become effective
18 November 1, 2026.

19 SECTION 5. Sections 2 and 3 of this act shall become effective
20 only upon the adoption by the People of Oklahoma of the State
21 Question created pursuant to Enrolled HJR 1076 or HJR 1077 of the
22 2nd Session of the 60th Oklahoma Legislature.

1 Passed the House of Representatives the 25th day of March, 2026.

2
3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

7
8 _____
9 Presiding Officer of the Senate